

25STCV38046 25STCV38046

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCV38046 Hearing Date: August 24, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Michael Jones

;

Plaintiffs,

vs.

Backcountry.Com, LLC

, et al.,

Defendants.

Case No.:

25STCV38046

Hearing Date:

August 24, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Compel Arbitration

MOVING PARTY: Defendants Backcountry.com, LLC, and
Jennifer Hill

RESPONDING
PARTY: Plaintiff Michael Jones

Motion to Compel
Arbitration

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

EVIDENTIARY
OBJECTIONS

The court
SUSTAINS the evidentiary objection to the Declaration of Elizabeth Brown for
lack of personal knowledge and foundation. (Evid. Code, §§ 403, 702.)

DISCUSSION

Defendants
Backcountry.com, LLC, and Jennifer Hill (“Defendants”) move the court for an
order compelling plaintiff Michael Jones (“Plaintiff”) to submit his claims to
binding arbitration and staying this action pending completion of arbitration.

1. Applicability of Federal
Arbitration Act

“The party

asserting the FAA applies to an agreement has ‘the burden to demonstrate FAA coverage by declarations and other evidence.’” (Evenskaas v. California Transit, Inc. (2022) 81 Cal.App.5th 285, 292 [internal citation omitted].)

“[W]hen an agreement provides that its ‘enforcement’ shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration[.]” (Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346.)

The court finds

that Defendants have met their burden to show that the Federal Arbitration Act (9 U.S.C. § 1 et seq.) (the “FAA”) governs this motion because the arbitration agreement that is the subject of this motion states that, “[t]his Agreement and any arbitration shall be governed by the Federal Arbitration Act (“FAA”) to the exclusion of any state law inconsistent with the FAA..” (Brown Decl., Ex. 1, § 10.)

2. Existence of Agreement to Arbitrate

“ “The party

seeking to compel arbitration bears the burden of proving the existence of an arbitration agreement, while the party opposing the petition bears the burden of establishing a defense to the agreement’s enforcement.” ” (Beco v. Fast Auto Loans (2022) 86 Cal.App.5th 292, 302.)

To determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.”

(Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.) “The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. [Citations.] A movant can bear this initial burden ‘by

attaching a copy of the arbitration agreement purportedly bearing the opposing party’s

signature.” (Ibid. [internal citations omitted].) “If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement’s existence” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a factual dispute” as to the existence of the agreement, the burden shifts back to the arbitration proponent, who retains the ultimate burden of proving its existence by a preponderance of the evidence. (Ibid.; Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165-166.)

First, the court

finds that Defendants have met their burden to provide a copy of an

alleged agreement to arbitrate this controversy. Defendants have furnished the court with a "Mutual Arbitration Agreement" purportedly bearing Plaintiff's electronic signature dated February 3, 2025, and which requires arbitration of any claims between Backcountry and the signatory employee "arising out of or relating to the Employee's employment with the Employer[.]" (Brown Decl. Ex. 1, § 3.)

Second, the court

finds that Plaintiff has met his burden to identify a factual dispute as to the existence of an arbitration agreement. Plaintiff does not recall seeing or signing an arbitration agreement in February of 2025. (Jones Decl. ¶ 11.)

Plaintiff also states that he does not recognize the signature on the Arbitration Agreement, because he is left-handed and could not easily replicate that signature with his dominant hand. (Jones Decl. ¶ 15.) Plaintiff has also provided samples of his electronic signature on other documents from the same period. (Jones Decl. Ex. A.) The signatures on those documents only marginally resemble the signature on the Arbitration Agreement. This evidence is sufficient to challenge the authenticity of an electronically signed arbitration agreement. (Iyere, supra, 87 Cal.App.5th 844-45 [inability to recall electronic signature is sufficient to dispute authenticity].)

Third, the court

finds that Defendants have not met their burden to prove the existence of an arbitration agreement by a preponderance of the evidence. Defendants offer nothing to rebut Plaintiff's challenge to the Agreement's authenticity. The Paylocity confirmation record on which Defendants seek to rely is not properly authenticated, and Defendants present no evidence describing how that document was generated. Moreover, Defendants' view that the signature on the Arbitration Agreement matches the signature on Plaintiff's evidence is not shared by the court, as discussed above.

Because the court

finds that Defendants have not proven the existence of an arbitration agreement by a preponderance of the evidence, the court denies the motion to compel arbitration.

ORDER

The court DENIES

defendants Backcountry.com, LLC, and Jennifer Hill's motion to compel

arbitration.

The court orders Michael
Jones to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 24, 2026

Robert B. Broadbelt III

Judge of the Superior Court